

TENTATIVE RULINGS

Date: June 8, 2026

#	Case Name	Tentative
1	Benson vs. Lemonade, Inc. 2025-01491797	1. Motion to Withdraw as Counsel 2. Case Management Conference Attorneys Michelle M. Meyers, Lisa J. Nicholes, and Jordan A. Goulet from Singleton Schreiber, LLP move to be relieved as counsel of record for plaintiffs Alexander Benson and Cortney Benson. The Motion fails to comply with California Rules of Court, Rule 3.1362. "A notice of motion and motion to be relieved as counsel under ... must be directed to the client and must be made on the Notice of Motion and Motion to Be Relieved as Counsel--Civil (form MC-051)." (Cal. Rules Ct., rule 3.1362, subd. (a).) "The motion to be relieved as counsel must be accompanied by a declaration on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel--Civil (form MC-052)." (Cal. Rules Ct., rule 3.1362, subd. (c).) "The proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel--Civil (form MC-053) and must be lodged with the court with the moving papers." (Cal. Rules Ct., rule 3.1362, subd. (d).) Moving attorneys did not file and serve the required form MC-051, MC-052, and MC-053 in compliance with Rule 3.1362. Tentative Ruling: The Motion is DENIED without prejudice to refile the Motion. Moving attorneys to give notice.

2	Dang vs. America West Lender Services, LLC 2025-01477410	1. Demurrer to Amended Complaint 2. Case Management Conference Defendants 5692 Karen Ave LLC and Edward Balta's demur to Plaintiff's First amended Complaint. Before filing a demurrer, the moving party shall meet and confer with the opposing party in person, by telephone, or by video conference at least 5 days before a responsive pleading is due to see if a resolution can be reached on the objections to the pleading. (Code Civ. Pro., § 430.41, subds. (a), (a)(2).) David Khoury, counsel for Defendants 5692 Karen Ave LLC and Edward Balta, states he sent Plaintiff's counsel a letter requesting a meet and confer. (Khoury Decl., ¶ 5, Ex. 1.) Plaintiff's counsel stated he was available to meet and confer but did not respond to a follow-up email from Defendants' counsel regarding availability. (Khoury Decl., ¶¶ 6-8.) As of the filing of the demurrer, Defendants' counsel has not heard back from Plaintiff's counsel regarding a meet and confer. (Khoury Decl., ¶ 9.) This does not satisfy the meet and confer requirement. Tentative Ruling: The Court ORDERS the parties to meaningfully meet and confer in person, by telephone, or by video conference (email/letter is insufficient) concerning the issues raised in the demurrer. Defendants are to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will construe this to mean that the issues have been resolved and will take the demurrer off-calendar.
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